



**PUBLIC REPORT
OF THE
VICE PRESIDENT'S TASK FORCE
ON COMBATTING TERRORISM**

FEBRUARY 1986



Fellow Americans:

As 1985 closed, the world was shocked by yet another savage terrorist act. The violent attacks at the Rome and Vienna airports left 114 wounded and 18 dead, five of whom were Americans. One was a young American girl of eleven.

Earlier in the year we saw the hijackings of TWA Flight 847 and the cruise ship *Achille Lauro*, where innocent Americans were brutally murdered by international outlaws. Such vicious attacks are representative of what has become a growing trend toward international terrorism over the past decade.

Concerned about the increasing loss of American lives, as well as repeated terrorist threats against our citizens, last July President Reagan asked me to chair a Cabinet-level Task Force on Combatting Terrorism.

Comprised of 14 senior government officials with major responsibilities for our national program to combat terrorism, the Task Force spent the last half of 1985 reviewing and evaluating current U.S. policy and programs.

One of the first things we discovered is that Americans view terrorism as one of the most serious problems facing our government, ranking it alongside such issues as the budget deficit and strategic arms control. They want assurance that the United States is prepared to handle the growing threat of terrorism, that we have a policy and response mechanism in place, and that we are working to improve our system. Our citizens' concern is justified, for terrorism has grown at an alarming rate. In 1985 alone there were 812 international incidents, with a loss of 926 lives, including 23 Americans.

Clearly the growing threat from increased terrorist activities against U.S. citizens and interests abroad calls for a strengthening of our own programs as well as greater cooperation from foreign governments. Domestically, although there were only seven terrorist incidents in the United States last year, the potential for future problems exists here at home and we must be well prepared.

When President Reagan asked our Task Force to review the nation's program to combat terrorism, it was not primarily a mandate to correct specific deficiencies, but one to reassess U.S. priorities and policies, to ensure that current programs make the best use of available assets, and to determine if our national program is properly coordinated to achieve the most effective results.

Our Task Force was briefed by more than 25 government agencies, visited 14 operations centers to observe our capability firsthand, met with over 100 statesmen, military officers, scholars and law enforcement officials, and traveled to embassies and military commands throughout the world where discussions with both U.S. and foreign officials were conducted.

I personally met with many members of Congress, airline chief executive officers, media executives, and former Cabinet officials and diplomats.

Our conclusion: the U.S. policy and program to combat terrorism is tough and resolute. We firmly oppose terrorism in all forms and wherever it takes place. We are prepared to act in concert with other nations or alone to prevent or respond to terrorist acts. We will make no concessions to terrorists. At the same time, we will use every available resource to gain the safe return of American citizens who are held hostage.

Our national program is well-conceived and working. The United States currently has in place antiterrorism activities in virtually every federal department and agency. Specific agencies have been assigned to respond to any threat or attack directed at our citizens whether on foreign soil, here at home, in the air or at sea.

To build on these existing safeguards, our Task Force made a number of recommendations to the President in December 1985. The following public report on terrorism includes those unclassified proposals dealing with improved coordination among government agencies, plus the creation of a full-time position on the National Security Council staff and the establishment of a consolidated intelligence center on terrorism.

The Task Force also is recommending strong Administration support of proposed legislation calling for the death penalty against any terrorist who kills an American hostage. Additional proposals cover increased cooperation with other governments and outline expanded communications programs with families of hostage victims, the media and the general public.

While international terrorism poses a complex, dangerous threat for which there is no quick or easy solution, I believe that the recommendations of our Task Force will significantly improve America's capability for combatting terrorism. As long as vicious attacks continue, terrorism will remain a top priority of this Administration.

A handwritten signature in black ink, appearing to read "George Bush". The signature is fluid and cursive, with the first name "George" written in a more compact, stylized manner and the last name "Bush" written in a larger, more open script.

U.S. Policy and Response to Terrorists

Since no country is immune to terrorism, it is imperative that governments have the appropriate policies, intelligence and flexible response options to deal effectively with terrorist acts. Trained personnel and programs must be in place before, during and after each crisis, both to respond to the problem and to answer inevitable criticism in the event of failure. Long-term policies to achieve these objectives are costly, complicated and difficult, yet essential as a defense against the importation of terrorism from overseas.

CURRENT POLICY

The U.S. position on terrorism is unequivocal: firm opposition to terrorism in all its forms and wherever it takes place. Several National Security Decision Directives as well as statements by the President and senior officials confirm this policy:

- The U.S. Government is opposed to domestic and international terrorism and is prepared to act in concert with other nations or unilaterally when necessary to prevent or respond to terrorist acts.
- The U.S. Government considers the practice of terrorism by any person or group a potential threat to its national security and will resist the use of terrorism by all legal means available.
- States that practice terrorism or actively support it will not do so without consequence. If there is evidence that a state is mounting or intends to conduct an act of terrorism against this country, the United States will take measures to protect its citizens, property and interests.
- The U.S. Government will make no concessions to terrorists. It will not pay ransoms, release prisoners, change its policies or agree to other acts that might encourage additional terrorism. At the same time, the United States will use every available resource to gain the safe return of American citizens who are held hostage by terrorists.
- The United States will act in a strong manner against terrorists without surrendering basic freedoms or endangering democratic principles, and encourages other governments to take similar stands.

U.S. policy is based upon the conviction that to give in to terrorists' demands places even more Americans at risk. This no-concessions policy is the best way of ensuring the safety of the greatest number of people.

EVOLUTION OF POLICY

U.S. policy on terrorism has evolved through years of experience in combatting terrorism and is an outgrowth of responses by various Administrations.

Following the terrorist attacks at the 1972 Munich Olympics, President Nixon established a Cabinet-level committee, chaired by the Secretary of State, to combat terrorism. Later during the Carter Administration this group was replaced with a more responsive program coordinated by the National Security Council. The program was designed to ensure interagency coordination and established the Lead Agency concept for managing terrorist incidents.

The Carter Administration also established a 10-member senior-level Interagency Executive Committee on Terrorism that eventually evolved into a group of more than 30 government organizations. The Committee was subsequently restructured along more functional lines.

During the first year of President Reagan's Administration, an organizational structure for crisis management was established with a group chaired by the Vice President and supported by appropriate interagency working groups.

In April 1982, the President refined specific Lead Agency responsibilities for coordination of the Federal response to terrorist incidents:

- Department of State—incidents that take place outside U.S. territory
- Department of Justice (FBI)—incidents that take place within U.S. territory
- Federal Aviation Administration (FAA)—incidents aboard aircraft that take place within the special jurisdiction of the United States.

In addition to the Lead Agency responsibilities, a number of interagency groups to facilitate coordination were established, including the Interdepartmental Group on Terrorism, to develop and coordinate overall U.S. policy on terrorism. Chaired by the Department of State, the group meets frequently to deal with issues such as international cooperation, research and development, legislation, public diplomacy, training programs and antiterrorist exercises.

The Antiterrorist Assistance Program was established in 1983 to provide counterterrorism training and law enforcement assistance to friendly foreign governments.

RANGE OF RESPONSES TO TERRORISM

Terrorism requires a coordinated national response on three levels. First, the immediate problem of managing incidents must include measures taken before, during and after the event. Second, coping with the threat is a long-term task that involves protecting people and property, reducing threat levels, and influencing the users and sponsors of terrorism to desist. Finally, there is the challenge of identifying and alleviating the causes of terrorism.

Managing Terrorist Incidents

While not applicable in every case, the options for managing terrorist incidents are:

- Preemption—Such actions are designed to keep an attack from occurring. Preemptive success is limited by the extent to which timely, accurate intelligence is available. Every-

day activities that can preempt attacks include altering travel routes or avoiding routine schedules. Successful preemption of terrorist attacks is seldom publicized because of the sensitive intelligence that may be compromised.

- **Delay**—Sometimes avoiding specific reactions until the circumstances are favorable is the best course. Delaying tactics are used during a terrorist incident in order to stall for time to position forces, keep the terrorists off balance, or develop other responses. Such tactics are particularly valuable when time is important to secure international cooperation in order to apply economic, diplomatic, legal or military pressures.
- **Third-Party Arrangements**—When incidents occur overseas the host country has primary responsibility for managing the situation. In other cases, for diplomatic or political reasons, the use of third-parties may offer the best opportunity for successful resolution of the incident.
- **Negotiating**—The United States has a clear policy of no concessions to terrorists as the best way to protect the greatest number of people. However, the United States Government has always stated that it will talk to anyone and use every available resource to gain the release of Americans held hostage.
- **Counterattacking or Force Options**—Forceful resolution of a terrorist incident can be risky as evidenced by the recent episode involving the Egyptian airliner on Malta; careful planning and accurate, detailed intelligence are required to minimize risks.

Our principles of justice will not permit random retaliation against groups or countries. However, when perpetrators of terrorism can be identified and located, our policy is to act against terrorism without surrendering basic freedoms or endangering democratic values. We are prepared to act in concert with other nations, or unilaterally when necessary, to prevent or respond to terrorist acts. A successful deterrent strategy may require judicious employment of military force to resolve an incident.

Recent legislation has greatly expanded federal criminal jurisdiction over international terrorist incidents involving U.S. citizens. Violent terrorist acts are crimes. Accordingly, the United States will make every effort to investigate, apprehend and prosecute terrorists as criminals.

Coping with the Threat

Dealing effectively with terrorism requires long-term measures for providing physical and personal security, training personnel, and enlisting the cooperation of other governments in protective measures, in gathering and sharing intelligence and in the elimination of terrorist threats.

The growth in frequency and violence of terrorist acts has increased physical and personal security costs, and changed lifestyles and work habits. Expenditures for security programs have grown sharply, but attacks against U.S. personnel and facilities in the Middle East, Europe and Latin America show that more must be done to provide security systems and to sensitize and train employees to better manage the threat.

Cooperation with host governments is essential, since they have the primary responsibility for providing security for U.S. citizens and facilities abroad. Their ability to monitor and

control terrorist activities, as well as participate in cooperative measures to collect and share intelligence, is extremely important. Improving aviation and other international security programs and sharing benefits of terrorism-related research and development are equally critical. Securing cooperation in applying political or economic pressures on states that sponsor terrorism is a difficult yet vital part of the overall program.

Alleviating Causes of Terrorism

Terrorism is motivated by a range of real and perceived injustices that span virtually every facet of human activity. The resulting grievances provide the basis for recruitment and the terrorists' justification of violence. A cooperative international effort to mitigate the sources of grievances, such as pursuing the peace process in the Middle East, is an essential yet complicated and long-term objective. The issues are complex, highly emotional and seldom amenable to outside solutions. However, efforts that promote democratic societies with guaranteed personal freedoms continue to be the cornerstone of U.S. foreign policy.

U.S. RESOURCES FOR COMBATTING TERRORISM

Most resources committed to combatting terrorism are incorporated into a variety of diplomatic, military, legal and law enforcement programs. As a result, a precise identification of U.S. Government resources devoted to terrorism alone is difficult. At present more than 150 specific activities to combat terrorism are carried out by various federal departments and agencies.

Since 1970, federal expenditures to combat terrorism have increased severalfold. While it is extremely difficult to break out specific activities from those agencies that perform multiple functions, about \$2 billion was spent in 1985 to combat terrorism both at home and abroad. The total number of people—calculated in terms of man-years—assigned to these various programs in 1985 was approximately 18,000.

The majority of the 150 activities included in this country's effort to combat terrorism fall within eight broad categories: research and development; administration and support; command, control and communications; intelligence; personnel security; physical security; counterterrorist operations; and education and training.

While agency estimates for funding and manpower needs for most of the categories are projected to continue at modest rates of growth through 1990, substantial increases in funding and manpower for physical security are expected at home and abroad.

Other program emphasis during this period is projected to occur in the following areas:

- More law enforcement, prosecution of terrorists
- Better security for civil aviation and maritime activities
- Increased assistance to other governments
- Better, more timely intelligence

Historically, security concerns have not received the high priority from government that they do today. Over the past few years, the dramatically changing situation has resulted in vastly increased financial and human resource expenditures to deal with the threat. By 1990, physical and personal security funding is expected to make up 40 percent of our resources committed to combatting terrorism.

PERSONAL AND PHYSICAL SECURITY

Several federal and local government agencies are responsible for domestic protection of foreign missions, resident diplomats and visiting dignitaries. Although excellent relations exist, occasional coordination problems occur among agencies of the federal and local government. This affects reciprocal foreign government protection provided U.S. visitors, personnel and installations. Decisions to resolve the problems of overlapping jurisdictions are complicated and require comprehensive study.

Frequent and violent attacks overseas have become a major concern. Necessary reliance on host country protection of U.S. installations and personnel, the most visible and difficult to protect terrorist targets, complicates the security issue. U.S. efforts to minimize vulnerabilities, increase awareness, and provide maximum protection have, nonetheless, made progress.

For example, the Secretary of State's Advisory Panel on Overseas Security convened in 1984 with a mandate to consider the full range of issues related to improving the security of U.S. interests abroad and protecting foreign visitors at home. The recommendations, many already implemented, concern organizational structure, responsibility assignments, personnel systems, training, equipment, accountability and physical strengthening of facilities. The physical security program alone, which would modify existing structures and require some new buildings, is currently budgeted for \$2.7 billion over the next five years.

FEDERAL AGENCIES' ROLES IN COMBATTING TERRORISM

Most agencies' activities related to combatting terrorism are closely meshed with their other national security functions. To a large extent, their resources are also used for normal diplomatic initiatives, law enforcement, intelligence collection and analysis, research and development, and broad crisis management functions.

The National Security Council (NSC) advises the President on national security matters. Working closely with concerned interagency groups such as the Interdepartmental Group on Terrorism and the Crisis Pre-planning Group, it also coordinates the development and implementation of programs to combat terrorist attacks or threats. In the event of a terrorist incident, the NSC staff serves as liaison between the White House and the responsible Lead Agency.

As previously mentioned, three Lead Agency assignments are in place for managing terrorist incidents: the Department of State for incidents occurring outside the United States; the Department of Justice (FBI) for incidents within the United States; and the Federal Aviation Administration of the Department of Transportation for hijacked aircraft in flight.

Lead Agencies assume coordination responsibilities in addition to their statutory functions. The Lead Agency cannot exercise exclusive jurisdiction, but has the lead because of primary operational and policy responsibilities in the area concerned. It is expected to discharge its own functions and ensure that interests of other departments and agencies are reflected in recommendations to the National Security Council. Between incidents, the Lead Agency works with other agencies to develop policy approaches, maintain necessary relationships with other governments and organizations, keep current on intelligence and other developments in the field, and maintain a readiness to respond whenever an incident occurs. During an incident, the Lead Agency establishes and maintains a Working Group to coordinate with other agencies and to discharge its own primary responsibilities. Accordingly, State, the FBI and the FAA maintain operations centers with staff support, secure and nonsecure voice communications, and satellite capabilities worldwide.

The specific functions of each of the Lead Agencies, as well as those of other key federal departments, agencies and interagency working groups that are part of the national program are covered in detail in Appendix II.

INTERNATIONAL COOPERATION

The national program to combat terrorism operates before, during and after an incident. Any strategy must include measures for deterrence, crisis management and response options. The first line of defense in every phase is international cooperation.

International cooperation offers the best hope for long-term success. More and more states recognize that unilateral programs for combatting terrorism are not sufficient. Without a viable, comprehensive, cooperative effort, terrorism and its supporters will benefit from the uncoordinated actions of its victims. International cooperation alone cannot eliminate terrorism, but it can complicate the terrorists' tasks, deter their efforts and save lives. In fact, numerous actual or planned attacks against U.S. or foreign targets have failed or were circumvented through multinational cooperation.

The United States pursues international cooperation through bilateral or multilateral agreements with like-minded nations and by serving as a member of various international organizations.

The United States has found the best multilateral forum for the discussion of terrorism to be the industrialized democracies which constitute the Summit Seven (United States, Canada, the United Kingdom, France, West Germany, Italy and Japan). This group has issued four joint declarations of unity (Bonn, 1978; Venice, 1980; Ottawa, 1981; and London, 1984), which have outlined areas of common concern. Additionally, the United States is looking for ways in which it can cooperate more closely with other countries outside this group. For example, there was strong emphasis in 1978 on anti-hijacking measures. The Bonn Declaration, signed in July 1978 by the United States, United Kingdom, Canada, France, Federal Republic of Germany, Italy and Japan, called for member countries to terminate civilian airline service to any country failing to prosecute or extradite a hijacker.

On December 9, 1985, the United Nations General Assembly, with strong U.S. support, passed by consensus vote its first unequivocal resolution condemning terrorism. Eleven days later the U.N. Security Council adopted a U.S.-initiated resolution condemning

unequivocally all acts of hostage-taking and urging the further development of international cooperation among states to facilitate the prevention, prosecution and punishment of hostage-taking as international terrorism. While such resolutions lack implementing procedures and are thus largely symbolic, they are important to the development of a consensus among all nations that terrorism is unacceptable international behavior.

Another important international initiative is the State Department's Anti-Terrorism Assistance Program designed to enhance the ability of foreign governments to deal with the security and crisis management aspects of terrorism.

Substantial progress in international cooperation also has been made in the areas of aviation and maritime security. For example, in June 1985, following the hijacking of TWA Flight 847, the International Civil Aviation Organization (ICAO) moved quickly to upgrade its Standards and Recommended Practices for airport and aircraft security. The Departments of State and Transportation are seeking ways to take legal action against countries that do not maintain adequate airport security or refuse to extradite or prosecute hijackers. Procedures also are under consideration to provide international inspection teams to examine airport security arrangements worldwide.

In November 1985, following the hijacking of the *Achille Lauro*, the International Maritime Organization (IMO) acting on a U.S. initiative directed its Maritime Safety Committee to develop, on a priority basis, measures for the protection of passengers and crews aboard ships. Additionally, an interagency working group, chaired by the Department of Transportation, was established to assess worldwide port and shipping security. Its recommendations are being worked through the IMO, with bilateral and multilateral security initiatives being pursued as needed.

CONSIDERATIONS IN DETERMINING RESPONSES

The United States can retaliate politically, economically and militarily. The utility of these actions depends in great measure on cooperation from other countries, but they can have a positive, long-range deterrent effect.

Use of our well-trained and capable military forces offers an excellent chance of success if a military option can be implemented. Such use also demonstrates U.S. resolve to support stated national policies. Military actions may serve to deter future terrorist acts and could also encourage other countries to take a harder line. Successful employment, however, depends on timely and refined intelligence and prompt positioning of forces. Counter-terrorism missions are high-risk/high-gain operations which can have a severe negative impact on U.S. prestige if they fail.

A U.S. military show of force may intimidate the terrorists and their sponsors. It would not immediately risk more U.S. lives or prestige and could be more effective if utilized in concert with diplomatic, political or economic sanctions. There are, however, some distinct disadvantages: a show of force could be considered gunboat diplomacy, which might be perceived as a challenge rather than a credible threat; it may require a sizable deployment of support activities; it may provide our enemies with a subject for anti-American propaganda campaigns worldwide; and most important, an active military response may prove necessary to resolve the situation if a show of force fails.

Political or economic sanctions directed against sponsoring states offer the least direct danger to lives and property and are more likely than military force to gain international support. Such sanctions could stimulate domestic opposition to a government's support for terrorists, particularly if multinational in character. However, multilateral sanctions are difficult to organize and even then may not be effective. Further, they could unify the country against the United States, since sanctions often harm the general populace more than terrorists. In every case the advantages of sanctions must be weighed against other foreign policy objectives.

INTELLIGENCE

Success in combatting terrorism is predicated on the availability of timely and accurate intelligence. One approach to assuring timely information in combatting terrorism involves conventional human and technical intelligence capabilities that penetrate terrorist groups and their support systems, including a sponsoring state's activities. An equally important approach is through investigative police efforts. Collecting tactical police intelligence aids in monitoring terrorists' activities and may be crucial to tracking subnational groups or small terrorist bands. The national intelligence effort relies heavily on collection and liaison arrangements that exist with many friendly governments. This effort must be augmented with the results of investigative police work and law enforcement liaison arrangements, which are currently being expanded.

Long-term intelligence programs to combat terrorism involve collection and analysis that address regional history, culture, religion, politics, psychology, security conditions, law enforcement and diplomatic relationships. The requirement for accurate analysis applies both to long-term threat assessments and to support incident management. All terrorism-related intelligence collection and analysis must be directed toward production and dissemination of clear, concise, and accurate threat warnings and assessments to decision-makers in time for them to take necessary action.

Task Force Conclusions and Recommendations

Terrorists of the '80s have machine-gunned their way through airports, bombed U.S. Embassies and military facilities, pirated airplanes and ships, and tortured and murdered hostages as if "performing" on a global theater screen. These international criminals have seized not only innocent victims but also the attention of viewers who sit helplessly before televisions around the world.

International terrorism is clearly a growing problem and priority, requiring expanded cooperation with other countries to combat it. Emphasis must be placed on increased intelligence gathering, processing and sharing, improved physical security arrangements, more effective civil aviation and maritime security, and the ratification and enforcement of treaties.

It is equally essential, however, that our defense against terrorism be enhanced domestically. For unless the trend of terrorism around the world is broken, there is great potential for increased attacks in our own backyard.

The Task Force's review of the current national program to combat terrorism found our interagency system and the Lead Agency concept for dealing with incidents to be soundly conceived. However, the system can be substantially enhanced through improved coordination and increased emphasis in such areas as intelligence gathering, communications procedures, law enforcement efforts, response option plans, and personal and physical security.

Terrorism is a bipartisan issue and one that members of Congress have jointly and judiciously addressed in recent years. Significant bills have been passed that markedly expand U.S. jurisdiction over terrorists and close prosecution loopholes.

However, there are stronger legislative proposals that are now before Congress that would further strengthen the nation's ability to combat terrorism both at home and abroad. Many of these proposals merit strong Administration support. It is also essential that the Executive Branch agencies continue to work closely with Congress in reviewing our current programs and recommending other legislative initiatives as appropriate.

Terrorism deeply troubles the American people. They feel angry, victimized, vulnerable and helpless. At the same time, they clearly want the United States Government to have a strong and consistent national antiterrorist policy. While such a policy exists, the Task Force believes that better communication is necessary to educate the public to our policy and to the ramifications of using force during a terrorist attack.

Americans also believe that terrorists take advantage of our free press to achieve their goals. News coverage of terrorism has created a dilemma for media executives: how to keep the people informed without compromising public security. Solving this problem will have to be a joint effort between media and government representatives. The government must improve its communications with the media during a terrorist attack. At the same time, the media must maintain high standards of reporting to ensure that the lives of innocent victims and national security are not jeopardized.

In December 1985, the Task Force on Combatting Terrorism completed its comprehensive examination of terrorism both internationally and domestically. It also finished its review of our nation's policy and programs for combatting terrorism.

The resultant findings emphasized the importance and appropriateness of a no-concessions position when dealing with terrorists. Some of the recommendations must remain classified, but the following unclassified Task Force recommendations are in keeping with that national policy and are intended to strengthen and streamline our current response system.

NATIONAL POLICY AND PROGRAM RECOMMENDATIONS

National Programming Document

Currently a number of agencies and departments within the Executive Branch are responsible for the elements of our national program to combat terrorism. While this is a reasonable and appropriate approach, the various elements should be compiled in a single programming document. Such a comprehensive listing would allow quick identification of agencies responsible for dealing with particular aspects of terrorism and their available resources.

The Task Force believes that such a document is necessary for the most effective coordination of the department and agency activities that comprise our national program. The NSC staff, in conjunction with OMB and the Departments of State and Justice, would maintain this national programming document.

Policy Criteria for Response to Terrorists

Because acts of terrorism vary so much in time, location, jurisdiction and motivation, consistent response is virtually impossible. However, the Interdepartmental Group on Terrorism should prepare, and submit to the NSC for approval, policy criteria for deciding when, if and how to use force to preempt, react and retaliate. This framework will offer decisionmaking bodies a workable set of standards by which to judge each terrorist threat or incident. The use of this framework also would reassure the American people that government response is formulated consistently.

Criteria for developing response options might include the following:

- Potential for injury to innocent victims
- Adequacy and reliability of intelligence
- Status of forces for preemption, reaction or retaliation
- Ability to identify the target
- Host country and international cooperation or opposition
- Risk and probability of success analysis

- U.S. public attitude and media reaction
- Conformance with national policy and objectives

Establish New National Security Council Position

A full-time NSC position with support staff is necessary to strengthen coordination of our national program. Working closely with the designated Lead Agencies, the position will be responsible for:

- participating in all interagency groups
- maintaining the national programming document
- assisting in coordinating research and development
- facilitating development of response options
- overseeing implementation of the Task Force recommendations

Speak with One Voice

Clear communications by appointed spokespersons and coordination of public statements during a terrorist incident are vital. Interagency working groups should provide specific guidance to all spokespersons on coordinating public statements. Without coordination, inaccurate information may result, intelligence resources may be compromised and political distress can result among friends and allies throughout the world—at a time when international cooperation can save lives.

Designation of spokespersons and response guidelines are especially important given the intense media pressure for comment during terrorist incidents. A misstatement or failure to consider legal issues before commenting to news media could jeopardize a criminal investigation or an eventual prosecution.

Review American Personnel Requirements in High-Threat Areas

Actions already have been taken to strengthen security of U.S. installations and to reduce personnel in dangerous areas. However, to date these efforts have not been fully coordinated among all agencies. The Department of State should direct Ambassadors in all designated high-threat areas to thoroughly review personnel requirements to determine if further personnel reductions are possible at U.S. facilities overseas. This review should include careful consideration of physical vulnerability of embassy-related facilities. The Department of Defense also should conduct a similar review for military commands abroad.

INTERNATIONAL COOPERATION RECOMMENDATIONS

Pursue Additional International Agreements

International cooperation is crucial to long-term deterrence of terrorism. It can be achieved through multilateral and bilateral agreements. While progress in achieving a multilateral

agreement has been slow, efforts should continue to reach an agreement to show that many nations are committed to fighting terrorism as an international crime against society.

In the absence of a multilateral agreement, the Department of State should aggressively continue to seek international cooperation through:

- general resolutions or agreements, in the United Nations and in other specialized organizations, concerning civil aviation, maritime affairs and tourism
- enhanced and more widely-ratified international conventions on subjects such as hijacking, hostage-taking and protection of diplomats
- less formal agreements that illustrate an international consensus to take effective action against terrorism
- improved implementation of existing agreements to fight terrorism

Close Extradition Loopholes

The United States itself is sometimes used as a safehaven for terrorists. Present extradition treaties with other countries preclude the turning over of fugitives wanted for "political offenses," an obvious loophole for terrorists. The State Department should seek extradition treaty revisions with countries with democratic and fair judicial systems to ensure that terrorists are extradited to the country with legal jurisdiction.

The process of closing these loopholes has begun with the United Kingdom in the form of proposed revisions to the US/UK Supplementary Treaty. The State Department should vigorously pursue Senate approval of this treaty and continue the revision process with other countries to ensure that terrorists are brought to justice.

Impose Sanctions Against Vienna Convention Violators

It is a fact that certain governments actively support terrorism. These states sometimes use their diplomatic missions as safehavens for terrorists or as caches for their materiel—a direct violation of the Vienna Convention. The State Department should continue working with other governments to prevent and expose violations of the Vienna Convention. A U.N. General Assembly resolution condemning the protection of terrorists in diplomatic missions could complement U.S. efforts to counter this abuse.

Evaluate and Strengthen Airport and Port Security

Pre-flight screening of passengers and carry-on baggage is a cornerstone of our domestic security program. Since 1972 these procedures have detected over 30,000 firearms and resulted in 13,000 arrests. However, the recent terrorist acts against international aviation and maritime interests indicate a need for continual monitoring and updated security procedures. This is especially true at ports and on board ships where there are no international or federally prescribed security measures.

The interagency Working Group on Maritime Security, chaired by the Department of Transportation, should survey security procedures and the threat potential to vessels, passengers and crew members. It also should review statutory authority. If adequate authority does not exist, recommendations should be made, in consultation with other ap-

appropriate agencies, for new legislation. In addition, legislation should be pursued to allow for a criminal background investigation of individuals working in restricted areas at airports and terminals. Finally, the Department of State and the Coast Guard should continue to work through the International Maritime Organization to develop internationally agreed measures to protect ships' passengers and crews.

INTELLIGENCE RECOMMENDATIONS

Establish a Consolidated Intelligence Center on Terrorism

Intelligence gathering, analysis and dissemination play a pivotal role in combatting terrorism. Currently, while several federal departments and agencies process intelligence within their own facilities, there is no consolidated center that collects and analyzes all-source information from those agencies participating in antiterrorist activities. The addition of such a central facility would improve our capability to understand and anticipate future terrorist threats, support national crisis management and provide a common database readily accessible to individual agencies. Potentially, this center could be the focus for developing a cadre of interagency intelligence analysts specializing in the subject of terrorism.

Increased Collection of Human Intelligence

U.S. intelligence gathered by technical means is adequate and pursued appropriately. At the same time, there is clear need for certain information that can only be gained by individuals. An increase in human intelligence gathering is essential to penetrate terrorist groups and their support systems.

Exchange of Intelligence between Governments

The national intelligence effort relies heavily on collection and liaison arrangements that exist with many friendly governments. Such exchanges with like-minded nations and international law enforcement organizations have been highly useful and should be expanded to support our own intelligence efforts.

LEGISLATIVE RECOMMENDATIONS

Make Murder of U.S. Citizens Outside the Country a Federal Crime

Currently, it is not a crime under U.S. law to murder an American citizen outside our borders—with the exception of diplomats and some government officials. Legal protection of diplomats should be extended to include all U.S. nationals who are victims of international terrorism. The Departments of State and Justice should continue urging Congress to adopt legislation, such as the Terrorist Prosecution Act of 1985, that would accomplish this objective.

Establish the Death Penalty for Hostage Murders

While there is legislation that allows the imposition of the death penalty if a death results from the seizure of an aircraft, there is no specific legislation that would allow for the same penalty for murder of hostages in other situations. The Justice Department should pursue legislation making anyone found guilty of murdering a hostage under any circumstances subject to the death penalty.

Form a Joint Committee on Intelligence

Procedures that the Executive Branch must follow to keep the Select Intelligence Committees informed of intelligence activities need streamlining. Adoption of a Joint Resolution introduced last year by Congressman Hyde would create a Joint Committee on Intelligence. This Resolution would reduce the number of people with access to sensitive information and provide a single secure repository for classified material. The Department of Justice should lead an Administration effort to secure passage of the Hyde proposal.

Establish Additional Incentives for Terrorist Information

The 1984 Act to Combat International Terrorism authorizes payment of up to \$500,000 for information in cases of domestic and international terrorism. Many feel this legislation does not go far enough.

The State Department should lead an interdepartmental push with Justice and CIA for legislation to develop a unilateral and/or bilateral program to encourage individuals to provide information about terrorists' identity or location. In addition to monetary rewards, other incentives include immunity from prosecution for previous offenses and U.S. citizenship for the individual and immediate family.

Authorized rewards should be publicized to both foreign and American audiences and consideration should be given to raising the current \$500,000 ceiling to \$1 million.

Prohibit Mercenary Training Camps

The International Trafficking in Arms Regulations have been strengthened to require a license to train foreign persons in the use of certain firearms; however, mercenary/survival training camps still operate domestically within the law. Appropriate agencies should closely monitor the extent to which foreign nationals are being trained in the United States in the use of firearms and explosives and seek additional legislation if necessary.

Stop Terrorist Abuse of the Freedom of Information Act

Members of terrorist groups may have used the Freedom of Information Act to identify FBI informants, frustrate FBI investigations and tie up government resources in responding to requests. This would be a clear abuse of the Act that should be investigated by the Department of Justice and, if confirmed, addressed through legislation to close the loophole.

Study the Relationship between Terrorism and the Domestic and International Legal System

International and domestic legal systems are adequate to deal with conventional war and crime. However, on occasion, questions of jurisdiction and authority arise when it comes to terrorism. For example, there are ambiguities concerning the circumstances under which military force is appropriate in dealing with terrorism. This lack of clarity about the international law enforcement relationships and legal systems could limit governments' power to act quickly and forcefully. The Departments of State and Justice should encourage private and academic study to determine how international law might be used to hasten—rather than hamper—efforts to respond to an act of terrorism.

Determine if Certain Private Sector Activities Are Illegal

In some cases individuals and companies have paid ransoms to terrorists for the return of kidnapped employees or stolen property. Such action is in direct conflict with the national policy against making concessions or paying ransoms to terrorists. The Department of Justice should consider whether legislation could be enacted and enforced to make such payments to terrorist organizations illegal.

COMMUNICATIONS RECOMMENDATIONS

Expand our Current Support Program for Hostage Families

Due to the intense pressure of a hostage situation, some family members of hostages have pressured the highest levels of government for information. While this is understandable, such activity has the potential to delay return of hostages by giving terrorists the media attention they seek or the belief that their demands are being considered. Further, the inadvertent disclosure of sensitive information could jeopardize efforts to gain the release of hostages.

The family liaison program, conducted by State's Bureau of Consular Affairs, should provide a broader outreach program to include visits, hot-lines, information on private counseling services and a personal contact for each family for communication even when there is nothing new to report. Such an expanded contact program will help the families understand that the hostages' interests are being given the highest priority by our government.

Launch a Public Education Effort

Because of the lack of understanding and currently available information concerning our national program for combatting terrorism, a broad education effort should be undertaken to inform the American public about our policy and proposals as well as the many ramifications of the use of force against terrorism, including death of innocent people, destruction of property, alienation of allies and possible terrorist reprisals. The education effort would take the form of publications, such as this report, seminars and speaking opportunities by government officials.

Working with the Media

Terrorists deliberately manufacture sensations to capture maximum media attention—a ploy that often takes advantage of U.S. press freedom. This activity can be offset by close communication between media and government. The U.S. Government should provide the media with timely information during a terrorist crisis. The media, in turn, should ensure that their reporting meets the highest professional and ethical standards.

Regular meetings between media and government officials on the coverage of terrorism could contribute to more effective government-media relations.